Australian Government
Australian Pesticides and Veterinary Medicines Authority

PERMIT TO ALLOW SUPPLY AND MINOR USE OF AN UNREGISTERED AGVET CHEMICAL PRODUCT FOR CONTROL OF ALFATOXIN PRODUCING APERGILLUS FLAVUS IN PISTACHIO

PERMIT NUMBER – PER96307

This permit is issued to the Permit Holder in response to an application granted by the APVMA under section 112 of the Agvet Codes of the jurisdictions set out below. This permit allows a Supplier (as indicated) to possess the product for the purposes of supply and to supply the product to a person who can use the product under permit. This permit also allows a person, as stipulated below, to use the product in the manner specified in this permit in the designated jurisdictions. This permit also allows the Permit Holder, the Supplier (if not one and the same) and any person stipulated below to claim that the product can be used in the manner specified in this permit.

THIS PERMIT IS IN FORCE FROM 7 OCTOBER 2025 TO 31 OCTOBER 2028

Permit Holder:
PISTACHIO GROWERS ASSOCIATION INCORPORATED
27 Ludgate Hill Road
ALDGATE SA 5154

Supplier:
PISTACHIO GROWERS ASSOCIATION INCORPORATED
27 Ludgate Hill Road
ALDGATE SA 5154

Persons who can use the product under this permit:
Persons generally

CONDITIONS OF USE

Products to be used:
ASPERGILLUS FLAVUS AF36 PREVAIL
AN UNREGISTERED PRODUCT
Containing: 3.0×10^6 CFU of NON-TOXIC STRAIN OF *ASPERGILLUS FLAVUS* per kg of colonized grain sorghum as the only active constituent.

RESTRAINT:
DO NOT tank mix with fertilizers, insecticides, or fungicides.

DO NOT apply more than once a year

Directions for Use:

Crop	Pest / Disease	Rate
Pistachios	Alfatoxin producing *Apsergillus sp.*	11.2 kg/ha

Critical Use Comments:
- Apply *Aspergillus flavus* AF36 Prevail to the surface of the soil under the plant canopy with a granular applicator.
- DO NOT cover the applied product with soil.
- Adjust the applicator to optimize delivery of *Aspergillus flavus* AF36 Prevail under the canopy and to minimize delivery of *Aspergillus flavus* AF36 Prevail to areas that do not get wet.
- *Aspergillus flavus* AF36 Prevail has been shown to be effective when applied from late November to early January.
- Apply prior to rain or irrigate within 3 days after application of *Aspergillus flavus* AF36 Prevail will improve results.
- Follow all directions given in the label in **Attachment 1**. Where the label contradicts the permit the permit must be followed.
- Users must continue to follow current best practices regarding testing for potential aflatoxin contamination while using this product.

Re-entry- Statement
Do not enter treated areas on the day of product application. If prior entry is necessary, wear cotton overalls buttoned to the neck and wrist (or equivalent clothing), elbow length chemical resistant gloves, goggles, and half facepiece respirator with dust cartridge or canister. Clothing must be laundered after each day's use.

Safety Directions
Harmful if inhaled. May irritate the eyes and skin. Repeated exposure may cause allergic disorders. Avoid contact with eyes and skin. Do not inhale dust. When using the product wear cotton overalls buttoned to the neck and wrist (or equivalent clothing), elbow length chemical resistant gloves, goggles, and half facepiece respirator with dust cartridge or canister. Wash hands after use. After each day’s use wash gloves, goggles, and respirator and if rubber wash with detergent and warm water and contaminated clothing.

First Aid Instructions

If poisoning occurs, contact a doctor or Poisons Information Centre. *Phone Australia 131126; New Zealand 0800 764 766.* If skin contact occurs, remove contaminated clothing and wash skin thoroughly. If in eyes, hold eyes open, flood with water for at least 15 minutes and see a doctor.

Storage and Disposal
Use all materials in this container by application according to the label instructions. Shake remainder into spreader hopper/tank by tapping the sides to loosen particles cleaning to the sides. Do not dispose the product on site. Puncture and deliver empty packaging or unused product to an approved waste management facility. If an approved waste management facility is not available, scatter the unused product on farmland and disc in. Alternatively bury the empty packaging or unused product 500 mm below the surface in a disposal pit specifically marked and set up for this purpose, clear of waterways, desirable vegetation and tree roots, in compliance with relevant local, state or territory government regulations. Do not burn empty containers or product. Do not recycle.

Protection of Wildlife, Fish, Crustaceans and Environment

DO NOT heap the product where animals can access it. Any spillages must be cleaned up immediately, preferably by recovery and re-use. If disposal is required, ensure product is thoroughly buried and not accessible to birds and other wildlife.

DO NOT contaminate streams, rivers or watercourses with the chemical or used containers.

Jurisdiction:
New South Wales, Victoria, South Australia and Western Australia only.

Additional Conditions:
This permit allows for the use of a product in a manner specified on the permit. Persons who wish to use products for the purposes specified in this permit must read, or have read to them, the details and conditions of this permit. Unless otherwise stated, the use of the product must be in accordance with the product label at **Attachment 1**.

The holder of the permit must notify the APVMA of new information, including relevant information in accordance with section 161 of the Schedule to the Agricultural and Veterinary Chemicals Code Act 1994, in accordance with the obligation imposed by that section.

Supply
The supplier must supply the product in a container that complies with the requirements of section 18 of the Agricultural and Veterinary Chemicals Code Regulations. Attached to this container must be a copy of this permit and a label which is identical in content and format to the label at **Attachment 1**.

Record keeping
Maintain records of all treatments performed under this permit. Details must include the date and locations where treatments occurred, the total amount of product used, and the names and addresses of the persons undertaking the use. These details must be maintained for a minimum period of two years from the date of expiry of this permit, and must be made available to the APVMA upon request.

To Avoid Crop Damage
The sensitivity of the crop to be treated under this permit has not been fully evaluated. It is advisable to only treat a small area to ascertain the reaction before treating the whole crop.

Issued by the Australian Pesticides and Veterinary Medicines Authority

Attachment 1

Aspergillus flavus AF36 Prevail

For displacing aflatoxin-producing fungi

Arizona Cotton Research and Protection Council

"for growers by growers"

COTTON: FOR USE ONLY IN THE STATES OF ARIZONA, TEXAS AND CALIFORNIA (Imperial, Riverside and San Bernardino counties only)

CORN: FOR USE ONLY IN THE STATES OF ARIZONA AND TEXAS

PISTACHIO, ALMOND AND FIG: FOR USE ONLY IN THE STATES OF CALIFORNIA, ARIZONA, TEXAS AND NEW MEXICO

***Aspergillus flavus* AF36** is a strain of *Aspergillus flavus* that was isolated in Arizona and is native and endemic to many states. Apply to cotton just prior to first bloom, to corn from the 7 leaf stage (V7) until silking, to pistachio from late May through early July, to almond from late May to early July, or to fig from early May to late June. ***Aspergillus flavus* AF36** competes with strains of *Aspergillus flavus* that produce large amounts of aflatoxin and, in doing so, limits the amount of these high aflatoxin producers that become associated with the crop.

Active ingredient: *Aspergillus flavus* strain AF36*	0.0008%
Other ingredients:	99.9992%
Total:	100.0000%

*Contains a minimum of 3,000 CFU/gram in the End-Use Product

KEEP OUT OF REACH OF CHILDREN

CAUTION

First Aid	
IF INHALED:	Move person to fresh air. If person is not breathing, call 911 or an ambulance, then give artificial respiration, preferably mouth-to-mouth if possible. Call a poison control center or doctor for further treatment advice.
IF ON SKIN OR CLOTHING:	Take off contaminated clothing. Rinse skin immediately with plenty of water for 15-20 minutes. Call a poison control center or doctor for treatment advice.
IF IN EYES:	Hold eye open and rinse slowly and gently with water for 15-20 minutes. Remove contact lenses, if present, after the first 5 minutes, then continue rinsing eye. Call a poison control center or doctor for treatment advice.
Have the product container or label with you when calling a poison control center or doctor, or going for treatment.	

SEE PRECAUTIONARY STATEMENTS BELOW AND ON OTHER PANEL

EPA Registration No.: 71693-2
EPA Establishment No.: 71693-AZ-001

Arizona Cotton Research and Protection Council
3721 E. Wier Avenue
Phoenix, Arizona 85040

NET WEIGHT: 50 lb. bags or variable weight bulk bags 1,000 to 3,000 lb

BATCH CODE:

PRECAUTIONARY STATEMENTS

HAZARD TO HUMANS AND DOMESTIC ANIMALS

CAUTION: Harmful if inhaled or absorbed through skin. Avoid breathing dust. Causes moderate eye irritation. Avoid contact with eyes, skin or clothing. Wash thoroughly with soap and water after handling and before eating, drinking, chewing gum, using tobacco or using the toilet. Remove and wash contaminated clothing before reuse. Prolonged or frequently repeated skin contact may cause allergic reactions in some individuals.

PERSONAL PROTECTIVE EQUIPMENT (PPE)

Applicators and other handlers must wear: protective eyewear, a NIOSH approved particulate respirator with any N, R, or P filter with NIOSH approval number prefix TC-84A; or a NIOSH approved powered air purifying respirator with an HE filter with NIOSH approval number prefix TC-21C (repeated exposure to high concentrations of microbial proteins can cause allergic sensitization), long-sleeved shirt and long pants, waterproof gloves, shoes and socks.

Follow the manufacturer's instructions for cleaning/maintaining PPE. If no such instructions are available for washables, use detergent and hot water. Keep and wash PPE separately from other laundry.

USER SAFETY RECOMMENDATIONS

Users should:
- Remove clothing/PPE immediately if pesticide gets inside. Then wash thoroughly and put on clean clothing.
- Remove PPE immediately after handling this product. Wash the outside of gloves before removing. As soon as possible, wash thoroughly and change into clean clothing.

ENVIRONMENTAL HAZARDS

Do not apply directly to water, or to areas where surface water is present, or to intertidal areas below the mean high water mark. Do not contaminate water when disposing of equipment washwater or rinsate.

DIRECTIONS FOR USE

It is a violation of Federal law to use this product in a manner inconsistent with its labeling. Do not apply this product in a way that will contact workers or other persons, either directly or through drift. Only protected handlers may be in the area during application. For any requirements specific to your State or Tribe, consult the State or Tribal agency responsible for pesticide regulation.

Read all label directions before using.

AGRICULTURAL USE REQUIREMENTS

Use this product only in accordance with its labeling and the Worker Protection Standard, 40 CFR part 170. This Standard contains requirements for the protection of agricultural workers on farms, forests, nurseries, and greenhouses, and handlers of agricultural pesticides. It contains requirements for training, decontamination, notification, and emergency assistance. It also contains specific instructions and exceptions pertaining to the statements on this label about personal protective equipment (PPE) and restricted-entry interval. The requirements in this box apply to uses of this product that are covered by the Worker Protection Standard.

Do not enter or allow worker entry into treated areas during the restricted-entry interval (REI) of 4 hours.

PPE required for early entry to treated areas (that is permitted under the Worker Protection Standard and that involves contact with anything that has been treated, such as plants, soil or water) is: protective eyewear, a NIOSH approved particulate respirator with any N, R, or P filter with NIOSH approval number prefix TC-84A; or a NIOSH approved powered air purifying respirator with an HE filter with NIOSH approval number prefix TC-21C, coveralls, waterproof gloves, shoes and socks.

PRODUCT INFORMATION

***Aspergillus flavus* AF36 Prevail** is for application to cotton, corn, pistachio, almond and fig to displace aflatoxin-producing strains of *Aspergillus flavus*. ***Aspergillus flavus* AF36 Prevail** contains a fungus, *Aspergillus flavus,* that displaces aflatoxin-producing fungi within the crop environment. ***Aspergillus flavus* AF36** has been shown to reduce aflatoxin both in laboratory studies and commercial field studies. ***Aspergillus flavus* AF36** is a living fungus growing on grain, which serves as both a carrier and a nutrient source. After application and once the colonized grain is exposed to sufficient moisture (this may occur at irrigation), ***Aspergillus flavus* AF36** will grow out and the grain will be covered with green spores. This growing fungus will first appear as white fuzz and later as green fuzz. The green spores will eventually be spread to the crop by wind and insects in the same manner that aflatoxin-producing fungi are spread.

USE PRECAUTIONS

Do not apply as a tank mixture with fertilizers, insecticides, or fungicides. Apply ***Aspergillus flavus* AF36 Prevail** only when the potential for drift to adjacent, sensitive areas (e.g., residential areas, bodies of water, known habitat for threatened or endangered species, nontarget crops on surrounding farms) is minimal. ***Aspergillus flavus* AF36 Prevail** may be applied to the approved crops that are irrigated.

APPLICATION INSTRUCTIONS

Ground Application: **COTTON**

1. Apply ***Aspergillus flavus* AF36 Prevail** to the surface of the soil under the plant canopy with a tractor-mounted, granular applicator. DO NOT COVER THE APPLIED PRODUCT WITH SOIL.
2. Adjust the applicator to optimize delivery of ***Aspergillus flavus* AF36 Prevail** under the canopy and to minimize delivery of ***Aspergillus flavus* AF36 Prevail** to furrows.
3. ***Aspergillus flavus* AF36 Prevail** has been shown to be effective when applied from late May through June, prior to first bloom. Make a single application during the last cultivation before bloom.
4. Furrow irrigating the crop with at least 2 inches of water within 3 days after application of ***Aspergillus flavus* AF36 Prevail** will provide best results.
5. Use 10 lbs of ***Aspergillus flavus* AF36 Prevail** per acre of cotton (per 13,000 linear feet based on 40-inch rows).

Ground Application: **CORN**

1. Apply ***Aspergillus Flavus AF36 Prevail*** directly to the soil or under the plant canopy after last cultivation with a tractor-mounted, granular applicator. Make a single application from the V7 growth stage until emergence of the silks from the husk. Cultivation must be completed before application. DO NOT COVER THE APPLIED PRODUCT WITH SOIL.
2. Adjust the applicator to optimize delivery of ***Aspergillus Flavus AF36 Prevail*** under the canopy and to minimize delivery of ***Aspergillus Flavus AF36 Prevail*** to areas without corn.
3. Rain or irrigation within 3 days of application of ***Aspergillus Flavus AF36 Prevail*** will improve results.
4. Use 10 lbs of ***Aspergillus Flavus AF36 Prevail*** per acre of corn (per 13,000 linear feet based on 40-inch rows).

Ground Application: **PISTACHIO, ALMOND AND FIG**

1. Apply ***Aspergillus Flavus AF36 Prevail*** to the surface of the soil under the plant canopy with a granular applicator. DO NOT COVER THE APPLIED PRODUCT WITH SOIL.
2. Adjust the applicator to optimize delivery of ***Aspergillus Flavus AF36 Prevail*** under the canopy and to minimize delivery of ***Aspergillus Flavus AF36 Prevail*** to areas that do not get wet.
3. ***Aspergillus Flavus AF36 Prevail*** has been shown to be effective when applied in **Pistachio** from late May through early July, in **Almond** from late May through early July, and in **Fig** from early May through late June.
4. Rain or irrigation within 3 days after application of ***Aspergillus Flavus AF36 Prevail*** will improve results.
5. Use 10 lbs of ***Aspergillus Flavus AF36 Prevail*** per acre; a single application should be made each year.
6. Do not apply to almonds in bloom.

Aerial Application: **COTTON, CORN**

1. Apply by air at the appropriate rate, timing, and frequency as described for ground applications.
2. Cultivation after application may diminish efficacy.
3. Rain or irrigation within 3 days after application of ***Aspergillus Flavus AF36 Prevail*** will improve results.

Ground Application: **PISTACHIO, ALMOND AND FIG**

1. Apply ***Aspergillus Flavus AF36 Prevail*** to the surface of the soil under the plant canopy with a granular applicator. DO NOT COVER THE APPLIED PRODUCT WITH SOIL.
2. Adjust the applicator to optimize delivery of ***Aspergillus Flavus AF36 Prevail*** under the canopy and to minimize delivery of ***Aspergillus Flavus AF36 Prevail*** to areas that do not get wet.
3. ***Aspergillus Flavus AF36 Prevail*** has been shown to be effective when applied in **Pistachio** from late May through early July, in **Almond** from late May through early July, and in **Fig** from early May through late June.
4. Rain or irrigation within 3 days after application of ***Aspergillus Flavus AF36 Prevail*** will improve results.
5. Use 10 lbs of ***Aspergillus Flavus AF36 Prevail*** per acre; a single application should be made each year.
6. Do not apply to almonds in bloom.

Aerial Application: **COTTON, CORN**

1. Apply by air at the appropriate rate, timing, and frequency as described for ground applications.
2. Cultivation after application may diminish efficacy.
3. Rain or irrigation within 3 days after application of ***Aspergillus Flavus AF36 Prevail*** will improve results.

STORAGE AND DISPOSAL

DO NOT CONTAMINATE WATER, FOOD, OR FEED BY STORAGE OR DISPOSAL.

PESTICIDE STORAGE: Store dry. Do not expose to relative humidity greater than 80% prior to use. This product contains a living organism that must be alive to work. Do not store under extreme conditions. Do not freeze. Do not expose to temperatures above 50° C (122° F).

PESTICIDE DISPOSAL: To avoid wastes, use all material in this container by application according to label directions. If wastes cannot be avoided, offer remaining product to a waste disposal facility or pesticide disposal program (often such programs are run by state or local governments or by industry).

CONTAINER HANDLING:
Paper Bags (50 lb) – Nonrefillable container. Do not reuse or refill container. Completely empty bag into application equipment. Then offer for recycling if available or dispose of empty bag in a sanitary landfill or by incineration or, if allowed by state and local authorities, by burning. If burned, stay out of smoke.

Returnable/Refillable Bulk Bags and Boxes (1000-3000 lb) - Refillable container. Refill this container with *Aspergillus flavus* AF36 Prevail only. Do not reuse this container for any other purpose. Cleaning the container before final disposal is the responsibility of the person disposing of the container. Cleaning before refilling is the responsibility of the refiller. To clean the container before final disposal, completely empty bag (or box) into application equipment. Return empty container to point of purchase, offer for recycling if available, or puncture and dispose of in a sanitary landfill or by other procedures approved by state and local authorities.

WARRANTY STATEMENT

To the extent consistent with applicable law, user assumes all risks of use, storage, and handling of this material not in accordance with directions provided on this label.